

25STCV32213 25STCV32213

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-16

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Case Number: 25STCV32213 Hearing Date: July 16, 2026 Dept: 730

Superior

Court of California

County

of Los Angeles

Department

730

FAYROUZ NACIRI

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC, et al.

Defendants

Case

No.:

25STCV32213

Hearing

Date:

July

16, 2026

ORDER GRANTING

UNOPPOSED MOTIONS TO COMPEL RESPONSES TO INITIAL DISCOVERY

Having

reviewed Defendant BMW of North America, LLC's unopposed Motions to Compel Responses to Form and Special Interrogatories and Request for Production of Documents, the Court rules as follows.

On

February 13, 2026, Defendant BMW of North America, LLC served Form Interrogatories, Set No. One, Special Interrogatories, Set No. One, and Request for Production of Documents, Set No. One, on Plaintiff Fayrouz Naciri.

Responses

for the aforementioned discovery were due March 25, 2026. Plaintiff Fayrouz Naciri failed to provide timely responses. Defendant BMW of North America, LLC now moves to compel code-compliant responses.

The

Court grants the motions to compel responses to the form and special interrogatories pursuant to Code of Civ. Proc. § 2030.290(b) and orders Plaintiff Fayrouz Naciri to provide verified responses to the interrogatories compliant with Code of Civ. Proc. §§ 2030.210 (a) and 2030.220 without objections by August 15, 2026. The Court grants the motion to compel responses to the request for production and production of items pursuant to Code of Civ. Proc. § 2031.300 and orders Plaintiff Fayrouz Naciri to provide verified responses pursuant to Code of Civ. Proc. § 2031.210 and to produce the documents, electronically stored information, and/or other things requested without objections by August 15, 2026.

Defendant

BMW of North America, LLC requests monetary sanctions totaling \$4,620.00. The Court awards sanctions pursuant to Code of Civ. Proc. § 2023.030 (a), Code of Civ. Proc. § 2030.290 (c), Code of Civ. Proc. § 2033.280 (c) and Code of Civ. Proc. § 2031.300 (c) in the amount of \$620.00, calculated as follows:

Defendant

BMW of North America, LLC requests \$2,310.00 in sanctions for each of the two

motions, based upon 6 hours of attorney's work at a rate of \$375.00 per hour and 1 \$60.00 filing fee. 2 hours were spent drafting the motion, 2 hours are anticipated in reviewing any opposition and 2 hours are anticipated in attending the hearing on the motion. The Court relies on its knowledge and experience in determining the reasonable value of the legal services provided under the circumstances in this case, e.g., routine nature of the motions, concurrently filed motions, and lack of opposition. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 ["When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value."].) The Court has discretion to fix the amount of reasonable monetary sanctions. (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal. App. 5th 771, 791.) The Court finds a reasonable award, including both motions, is four hours of attorney's work at a rate of \$265 per hour and 2 \$60.00 filing fees. Therefore, the Court imposes sanctions of \$1180 on Plaintiff and counsel of record, jointly and severally, to be paid within 30 days of this order.

The

sanctions total \$1180.00 and are payable by Plaintiff Fayrouz Naciri and her counsel by August 15, 2026.

The

Court also notes the motion to compel interrogatories were improperly filed as one motion. This motion should have been filed as two motions, one for each piece of discovery. Therefore, the Court orders Defendant BMW of North America, LLC to pay one additional \$60.00 filing fee.

Moving

Party is to give notice of this ruling.

DATED: July 16, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.